

M/s Torrent Power Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Single Judge · 8 October 2012 · Writ-C No. 52415 of 2012 · **PLA theft-assessment award stayed; writ listed for admission**

HEADNOTE

Licensee's writ against a Permanent Lok Adalat award that had set aside a theft-assessment demand under the Electricity Supply Code, 2005: notice issued, the award stayed, and the questions of PLA jurisdiction and the assessment left open.

FACTUAL SUMMARY

On inspection, Torrent Power Ltd. found that private respondent No. 3 had committed theft of electricity and raised an assessment bill of Rs.81,433.90 under the Electricity Supply Code, 2005. Instead of appealing under the Code, the consumer filed Case No. 22 of 2012 before the Permanent Lok Adalat, Agra, which on 12 September 2012 set aside the demand. The licensee sought quashing of that award for want of jurisdiction and as perverse. The High Court issued notice and listed the writ for admission.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interlocutory stay of PLA award on theft assessment

HOLDING

Without deciding whether the Permanent Lok Adalat had jurisdiction to entertain a challenge to a theft-assessment demand under the Electricity Supply Code, 2005, or whether its award was perverse, the Court issued notice, listed the writ for admission/hearing, and stayed operation of the Permanent Lok Adalat, Agra judgment dated 12 September 2012 till the next date of listing. Subsequent listings kept the interim order in force. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PERMANENT LOK ADALAT HAD JURISDICTION TO ENTERTAIN A CHALLENGE TO A THEFT-ASSESSMENT DEMAND UNDER THE ELECTRICITY SUPPLY CODE, 2005, IN PLACE OF THE STATUTORY APPEAL

¶ 1

NOT DECIDED — WHETHER THE PERMANENT LOK ADALAT AWARD SETTING ASIDE THE ASSESSMENT OF RS.81,433.90 WAS PERVERSE, AND THE MERITS OF THE THEFT BILL

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